

THIRD SCHEDULE.

· Section 16.

PROVISIONS OF PRINCIPAL ACT REPEALED.

In subsection (2) of section one the words "using or carrying".

In subsection (6) of section one, the words "using or carrying".

Subsection (7) of section one.

Proviso (a) to subsection (8) of section one; in proviso (c) to that subsection the words "or carrying"; proviso (d) to that subsection; in proviso (e) to that subsection the words "using or carrying"; and provisos (f), (h) and (j) to that subsection.

The proviso to subsection (2) of section two.

In subsection (2) of section three the words from "but no offence" to the end of the subsection.

In subsection (1) of section five the words "use or carry", where they secondly occur, and the words "using or carrying".

In subsection (1) of section six the word "carry".

In section seven the words "or under his control".

In subsection (1) of section ten the words "or to be using or carrying" and the words from "except" to "offence".

In subsection (1) of section eleven, the words "or used or carried by him".

In subsection (1) of section twelve the words from "The expression 'firearm'" to "for export", and the words from "The expression 'police district'" to "City Police".

In paragraph (3) of section seventeen the words "References to an appeal to quarter sessions shall not apply and".

Paragraph (5) of section seventeen.

The First Schedule.

CHAPTER 40.

An Act to amend the Midwives Acts, 1902 to 1926.

[31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present

Parliament assembled, and by the authority of the same,
as follows :—

Provision of
domiciliary
service of
midwives.

1.—(1) It shall be the duty of every local supervising authority within the meaning of the principal Act (in this Act referred to as an “authority”) to secure, whether by making arrangements with welfare councils or voluntary organisations for the employment by those councils or organisations of certified midwives as whole time servants or by itself employing such midwives, that the number of certified midwives so employed who are available in its area for attendance on women in their own homes as midwives, or as maternity nurses during childbirth and from time to time thereafter during a period not less than the lying-in period, is adequate for the needs of the area.

In this subsection the expression “lying-in period” means the period defined as the lying-in period by any rule for the time being in force under section three of the principal Act.

(2) Within the period of six months from the commencement of this Act, or such longer period as the Minister may in any particular case allow, every authority shall submit to the Minister its proposals for carrying out its duties under this section, after consultation—

(a) in the case of every authority—

(i) with all the voluntary organisations which, to the knowledge of the authority, employ or are willing to employ domiciliary midwives in the area of the authority; and

(ii) with such local organisation (if any) of registered medical practitioners as appears to the authority effectively to represent the opinions of such practitioners practising in that area on the questions to be considered in formulating the proposals; and

(iii) with such local organisation (if any) of midwives as appears to the authority effectively to represent the opinions of midwives practising in that area on the questions aforesaid; and

(b) in the case of every authority being a county council, with every welfare council being the

council of a county district within the county;
and

- (c) in the case of the London County Council, with any association or committee which appears to that council to be representative of the metropolitan borough councils :

Provided that where a voluntary organisation has been established for the purpose of co-ordinating the services provided by other organisations referred to in sub-paragraph (i) of paragraph (a) of this subsection the authority may consult the organisation so established instead of consulting those other organisations.

(3) The proposals submitted by an authority as aforesaid shall include particulars—

- (a) of the arrangements (if any) proposed to be made between the authority and welfare councils and voluntary organisations; and
- (b) of the number of midwives to be employed by, and the parts of the area of the authority to be served (whether exclusively or jointly) by, the authority, welfare councils and voluntary organisations respectively, or, if no such arrangements as aforesaid are proposed to be made, of the number of midwives to be employed by the authority.

(4) Every authority shall, not later than the date on which its proposals are submitted to the Minister as aforesaid, deliver a copy thereof to every council, organisation or other body which it has consulted in pursuance of subsection (2) of this section and to every such organisation as is referred to in sub-paragraph (i) of paragraph (a) of that subsection, whether it has been so consulted or not.

(5) If an authority does not propose to make an arrangement with a welfare council or voluntary organisation which employs domiciliary midwives in the area of the authority, or if any such council or organisation is dissatisfied with the arrangements proposed to be made—

- (a) the council or organisation may, within two months after the proposals of the authority are submitted to the Minister, make representations to the Minister; and

- (b) the Minister, after considering any such representations and consulting the authority, may direct the authority to enter into such arrangements with such welfare councils or voluntary organisations as he thinks fit, or to vary any arrangements proposed to be made, and to alter its proposals accordingly.

(6) It shall be the duty of every authority to carry its proposals, as altered in accordance with any directions given by the Minister under the last foregoing subsection, into effect within the period of twelve months from the commencement of this Act, or such longer period as the Minister may in any particular case allow.

Appoint-
ment and
terms of
employ-
ment of
midwives
by autho-
rities.

2.—(1) At least one month before first engaging midwives for employment in pursuance of this Act, an authority shall—

- (a) give notice that applications for the employment are about to be considered, together with information as to the salary and other conditions of service, in one or more newspapers circulating in its area; and
- (b) send a copy of the said notice to every midwife who, on or after the first day of January next but one before the date when the said notice was given, has given notice of intention to practise in the area.

(2) A midwife employed by an authority in pursuance of this Act shall be required to devote the whole of her time to the service of the authority.

(3) Where a midwife employed by an authority in pursuance of this Act—

- (a) on ceasing to be so employed, is entitled to a pension under any enactment or any scheme made under or in pursuance of an enactment, or would be so entitled if she had then completed a sufficient period of service or made contributions to a superannuation fund for a sufficient period; and
- (b) was first so employed by that or some other authority before the expiration of three years

from the commencement of this Act and, immediately before being first so employed, was not employed by an authority or any other local authority, whether as a midwife or in any other capacity ;

any period or periods (not exceeding in the aggregate ten years) during which she practised as a midwife before she was first so employed may, if and to the extent that the authority by which she ceases to be so employed thinks fit, be treated for the purpose of reckoning the amount of the pension, and also (if the case requires) for the purpose of ascertaining whether she is entitled to a pension, as a period of service during which she made contributions to the appropriate superannuation fund.

(4) The provisions of the last foregoing subsection shall have effect notwithstanding anything in the enactment or scheme by virtue of which the pension is payable.

(5) Where a pension or any part thereof is payable solely by reason of the exercise of the discretion conferred on an authority by this section, the pension or that part thereof, as the case may be, shall be paid, in the case of an authority being the council of a county, out of the county fund, and, in the case of any other authority, out of the general rate fund and shall, in the case of the London County Council, be paid as expenses for general county purposes.

(6) In this section the expression " pension " includes a superannuation allowance.

3.—(1) It shall be the duty of every authority employing midwives in pursuance of this Act to fix a scale of fees payable for their attendance as midwives and a scale of fees payable for their attendance as maternity nurses, and to recover from any woman on whom such a midwife has attended as a midwife or maternity nurse, or from the husband or other person liable to maintain such a woman, the fees respectively fixed as aforesaid :

Fees for attendance of midwives employed by authorities.

Provided that, if the authority is satisfied that the persons from whom the fees are recoverable cannot reasonably, having regard to their financial circumstances, be required to pay more than a part of the fees, or any part of the fees whatsoever, it may remit such part of the

fees as those persons are in the opinion of the authority unable to pay, or the whole of the fees, as the case may be.

(2) Any fees recoverable under this section shall, without prejudice to any other remedy, be recoverable summarily as a civil debt.

Financial
provisions.
19 & 20
Geo. 5. c. 17.

4.—(1) The following provisions of this section shall have effect with a view to fulfilling the intention of the Local Government Act, 1929, as declared by section one hundred and thirty-five thereof, namely, that in the event of material additional expenditure being imposed on any class of local authorities by reason of the institution of a new service after the commencement of that Act, provision should be made for increased contributions out of moneys provided by Parliament.

(2) In respect of each year in the third fixed grant period, a grant, calculated in accordance with the First Schedule to this Act, shall be paid out of moneys provided by Parliament to every authority on which additional expenditure is imposed by subsection (1) of section one of this Act in respect of that year.

(3) For the fourth and every subsequent fixed grant period, the General Exchequer Contribution shall include such increased contribution by reason of the additional expenditure imposed on authorities by the said subsection (1) as Parliament may hereafter determine.

(4) For the purpose of this section, expenditure imposed as aforesaid on an authority in respect of any year shall be deemed to be additional if, and to the extent that, it is estimated to exceed the expenditure incurred by that authority and any welfare councils in employing or providing for the employment of domiciliary midwives in the area of the authority in the financial year ended on the thirty-first day of March nineteen hundred and thirty-six.

(5) Any such estimate as aforesaid made for the purpose of subsection (2) of this section shall be made to the satisfaction of the Minister, in accordance with directions given by him after consultation with such associations of local authorities as appear to him to be concerned and with any local authority with which

consultation appears to him to be desirable, so, however, that the directions shall require the amount of the expenditure imposed as aforesaid on an authority by reason of its employment of midwives to be estimated by reference to the estimated average net annual cost incurred by authorities in employing a midwife in pursuance of this Act.

(6) In this section the expressions "fixed grant period" and "General Exchequer Contribution" have the same meanings as in the Local Government Act, 1929.

(7) For the purpose of section one hundred and four of the Local Government Act, 1929 (which empowers the Minister to reduce grants payable under Part VI of that Act to an authority which fails to maintain an efficient service), grants payable under this section shall be deemed to be payable under the said Part VI, and the functions of an authority under this Act shall be deemed to be functions relating to public health services.

(8) Grants payable under this section shall be payable at such times and in such manner as the Treasury may direct, and subject to such conditions as to records, certificates, audit or otherwise, as the Minister may, with the approval of the Treasury, impose.

5.—(1) Every midwife who, on or after the first day of January nineteen hundred and thirty-five and before the eighteenth day of March nineteen hundred and thirty-six, has given notice to an authority of intention to practise and who, before the expiration of three years from the commencement of this Act, surrenders her certificate to the authority in whose area she is practising at the time of the surrender, shall be entitled to be paid by the last-mentioned authority by way of compensation a sum equal to three times the average net annual emoluments derived from her practice as a midwife or maternity nurse during whichever of the following periods is the shorter, that is to say :—

Compensation to midwives ceasing or required to cease practice.

(a) the period of three years next before the date on which she surrendered her certificate; or

(b) the period during which she has practised as a midwife or maternity nurse :

Provided that, where at the date upon which she surrenders her certificate a midwife is practising in the area of more than one authority, the provisions of this subsection shall have effect subject to the modifications set out in Part I of the Second Schedule to this Act.

(2) If it appears to an authority that any midwife who, on or at any time after the first day of January, nineteen hundred and thirty-six, has given notice to that authority of intention to practise is incapable, by reason of age or infirmity of mind or body, of efficiently performing her duties as a midwife, the authority may, by a direction in writing given at any time before the expiration of three years from the commencement of this Act, require her to surrender her certificate to the authority, and thereupon the following provisions shall have effect:—

- (a) the midwife may within one month from the date of the direction appeal to the Minister, who may allow or dismiss the appeal as he thinks fit;
- (b) if the midwife does not appeal as aforesaid or if her appeal is dismissed, she shall surrender her certificate in accordance with the direction within one month from the date of the direction or from the date on which the appeal is dismissed, as the case may be, and, if she fails to do so, the authority shall report the matter to the Board, who shall thereupon remove her name from the roll of midwives;
- (c) on surrendering her certificate to the authority the midwife shall be entitled to be paid by the authority by way of compensation a sum equal to five times the average net annual emoluments derived from her practice as a midwife or maternity nurse during whichever of the following periods is the shorter, that is to say:—
 - (i) the period of three years next before the date on which the direction was given by the authority; or
 - (ii) the period during which the midwife has practised as a midwife or maternity nurse.

(3) Where on or at any time after the first day of January, nineteen hundred and thirty-six, a midwife has given notice of intention to practise to two or more

authorities, the last foregoing subsection shall have effect subject to the modifications set out in Part II of the Second Schedule to this Act.

(4) If any midwife is aggrieved by the refusal of an authority to pay her compensation under this section or by the amount of the compensation paid, or by a decision of an authority under the next following subsection, she may appeal to the Minister, whose decision shall be final.

(5) The whole or any part of any sum payable by an authority to a midwife by way of compensation under this section may, if the authority decides that it is in the interest of the midwife so to do, instead of being paid in a lump sum, be laid out by the authority in the purchase of an annuity terminable on the midwife attaining the age of seventy or dying before attaining that age and payable to her at such intervals as the authority may determine.

(6) There shall be paid to every authority in respect of each financial year out of moneys provided by Parliament a sum equal to one-half of the aggregate amount paid to midwives, or laid out as aforesaid, by the authority in that year by way of compensation under this section.

(7) An authority shall forward any certificate surrendered to it under this section to the Board, and thereupon the Board shall cancel the certificate by endorsement thereon and return it so endorsed to the midwife to whom it relates and remove the name of that midwife from the roll of midwives.

(8) If any woman whose name has been removed from the roll of midwives under this section receives any remuneration for attending as a nurse on a woman in childbirth or at any time during the ten days immediately after childbirth, she shall be liable on summary conviction to a fine not exceeding ten pounds.

(9) Where the name of a midwife is removed from the roll of midwives under this section, her name shall not be restored to the roll.

6.—(1) If, on or after the date on which this section is applied to the area of any authority or to any county district contained therein, any person, being a woman neither certified under the principal Act nor registered in the general part of the register of nurses

Prohibition
of unquali-
fied persons
acting as
maternity

nurses for
gain.

9 & 10

Geo. 5. c. 94.

required to be kept under the Nurses Registration Act, 1919, or a male person, receives any remuneration for attending in that area or district as a nurse on a woman in childbirth or at any time during the ten days immediately after childbirth, that person shall be liable on summary conviction to a fine not exceeding ten pounds :

Provided that the provisions of this subsection shall not apply in the case of—

- (a) any person who, while undergoing training with a view to becoming a duly qualified medical practitioner or a certified midwife, attends on a woman as aforesaid as part of a course of practical instruction in midwifery recognised by the General Medical Council or by the Board; or
- (b) any person who attends on a woman as aforesaid in any nursing home which is registered under the Nursing Homes Registration Act, 1927, or exempt from the operation of that Act under section six thereof, or in any hospital or other premises or institution which is not included in the definition of the expression "nursing home" in subsection (1) of section ten of that Act by virtue of paragraphs (i), (ii), and (iii) thereof; or
- (c) a woman who, before the first day of January, nineteen hundred and thirty-seven, has been certified by the authorities of a hospital or other institution, to which the Minister has by order applied this proviso, to have been trained in obstetric nursing and who has given notice in writing to the authority of the area that she has been so certified.

17 & 18

Geo. 5. c. 38.

(2) The Minister may by order apply this section to the area of any authority, or to any county district contained therein, when he is satisfied that that authority has secured in pursuance of this Act the provision of a service of domiciliary midwives which is adequate for the needs of the area or district.

(3) The provisions of this section shall be in addition to, and not in derogation of, the provisions of subsection (2) of section one of the principal Act.

7.—(1) The power of the Board to frame rules under section three of the principal Act shall include a power to frame rules requiring midwives to attend from time to time, in accordance with the provisions of the rules, a course of instruction approved by the Board.

Attendance of midwives at courses of instruction.

(2) Every authority shall provide or arrange for the provision of such courses of instruction for midwives practising in its area as may be necessary to enable those midwives to comply with the rules made under subsection (1) of this section.

8. Any document required or authorised by this Act to be sent, delivered or given to any person by an authority may be sent, delivered or given by registered post in a letter addressed—

Service of documents.

- (a) in a case where that person is a midwife, to the address last notified by her to the authority;
- (b) in a case where that person is a welfare council, to the clerk of that council at its offices;
- (c) in a case where that person is a voluntary organisation, to the secretary or other officer of the organisation at the office of the organisation, or, if the organisation has no office, at his last known or usual place of abode.

9.—(1) The scale of fees payable to registered medical practitioners to be fixed by the Minister under subsection (1) of section fourteen of the *Midwives Act, 1918*, shall be fixed by regulations, and the power to fix the said scale shall include power to prescribe by the regulations conditions subject to which the fees are to be payable.

Miscellaneous amendments of *Midwives Acts, 8 & 9 Geo. 5. c. 43.*

(2) The Minister may make regulations prescribing the qualifications of persons appointed by an authority under section eight of the principal Act to exercise supervision over midwives practising within its area, and no person shall be so appointed whose qualifications are not in accordance with the regulations.

(3) Section five of the principal Act (which provides for the payment of a fee not exceeding one guinea by women presenting themselves for examination or certificate) shall be amended by inserting after the words "one guinea" the words "for each examination or certificate."

(4) The power of the Board to frame rules under section three of the principal Act shall include power to frame rules—

- (a) regulating the grant by the Board of diplomas, being diplomas in the teaching of midwifery, to midwives presenting themselves for examination for such diplomas; and
- (b) applying to proceedings before the Board for the removal of the name of a midwife from the roll of midwives, subject to any necessary modifications, the provisions of the Arbitration Act, 1889, relating to the summoning, attendance and examination of witnesses, the production of documents, the administration of oaths and the taking of affirmations.

52 & 53 Vict.
c. 49.

(5) Any expenses incurred by an authority in taking such proceedings as aforesaid shall be defrayed in the same manner as the expenses of the authority under the principal Act.

Interpreta-
tion.

10. In this Act the following expressions have the meanings hereby respectively assigned to them:—

- “the Board” means the Central Midwives Board;
- “domiciliary midwife” means a midwife who is available for attendance on women in their own homes as a midwife or maternity nurse;
- “the Minister” means the Minister of Health;
- “notice of intention to practise” means a notice given by a midwife under section ten of the principal Act of her intention to practise as a midwife;
- “the principal Act” means the Midwives Act, 1902, as amended by any subsequent enactment;
- “voluntary organisation” means an organisation which is substantially supported by voluntary contributions;
- “welfare council” means a council, not being an authority within the meaning of this Act, which has established a maternity and child welfare committee under the Maternity and Child Welfare Act, 1918.

2 Edw. 7.
c. 17.

8 & 9 Geo. 5.
c. 29.

11.—(1) This Act may be cited as the Midwives Act, 1936. Short title,
construction
and extent.

(2) This Act shall be construed as one with the Midwives Acts, 1902 to 1926, and those Acts and this Act may be cited together as the Midwives Acts, 1902 to 1936.

(3) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 4.

RULES FOR CALCULATING THE AMOUNT OF THE GRANTS PAYABLE TO AUTHORITIES.

1. The grant payable to an authority under subsection (2) of section four of this Act in respect of any financial year shall be calculated as follows:—

- (a) the amount of the additional expenditure imposed on the authority in respect of that year by subsection (1) of section one of this Act, as estimated in accordance with the provisions of subsections (4) and (5) of the said section four shall be halved;
- (b) in a case where the authority is the council of a county borough, the weighted population of the borough shall be divided by the estimated population of the borough;
- (c) in a case where the authority is the council of a county or county district, the weighted population of the county constituting or containing the area of the authority shall be divided by the estimated population of that county;
- (d) the aggregate weighted population of all the counties and county boroughs shall be divided by the aggregate estimated population of all the counties and county boroughs;
- (e) the amount ascertained under sub-paragraph (a) of this paragraph shall be multiplied, in a case where the authority is the council of a county borough, by the

1ST SCH.
—cont.

amount ascertained under sub-paragraph (b) of this paragraph and in any other case by the amount ascertained under sub-paragraph (c) of this paragraph and shall in any case be divided by the amount ascertained under sub-paragraph (d) of this paragraph;

and the amount of the grant payable to the authority shall be the amount ascertained under sub-paragraph (e) of this paragraph calculated to the nearest pound.

2. In the last foregoing paragraph the expressions "weighted population" and "estimated population" mean respectively the weighted population and the estimated population as determined at the date of the commencement of this Act for the purpose of the apportionment of the General Exchequer Contribution under the Local Government Act, 1929.

Section 5.

SECOND SCHEDULE.

PART I.

MODIFICATIONS OF SUBSECTION (1) OF SECTION FIVE IN
A CASE WHERE A MIDWIFE IS PRACTISING IN THE
AREA OF MORE THAN ONE AUTHORITY.

1. The midwife may surrender her certificate to any one of the authorities in whose areas she is practising on the date of the surrender, and upon surrendering her certificate to any such authority she shall be entitled to be paid by that authority such compensation as is provided by the said subsection (1).

2. The authority by which the compensation is so paid shall be entitled to recover from any other such authority as aforesaid a sum equal to a proportionate amount of the compensation so paid calculated as hereafter provided.

3. The sum recoverable from such an authority as aforesaid shall be an amount bearing the same proportion to half the amount of the compensation paid to the midwife as the amount of the average net annual emoluments derived by the midwife from her practice as a midwife or maternity nurse in the area of that authority bears to the total of the amounts of the average net annual emoluments derived by the midwife from her practice in the areas of all the authorities in whose area she is practising on the said date.

4. For the purposes of the foregoing paragraph the average net annual emoluments derived by a midwife from her practice

as a midwife or maternity nurse in the area of any authority shall be calculated by reference to whichever of the following periods is the shorter, that is to say :—

2ND SCH.
—cont.

- (a) the period of three years next before the said date; or
- (b) the period during which she has practised in the area of that authority.

5. In the event of any disagreement between any authorities as to the sum recoverable from an authority under the provisions of this Part of this Schedule, the question may be referred by any of the authorities concerned to the Minister and the decision of the Minister shall be final.

PART II.

MODIFICATIONS OF SUBSECTION (2) OF SECTION FIVE IN A CASE WHERE A MIDWIFE HAS GIVEN NOTICE OF INTENTION TO PRACTISE TO MORE THAN ONE AUTHORITY.

1. The direction mentioned in subsection (2) of section five may be given jointly by any two or more of the authorities to which the midwife on or at any time after the first day of January, nineteen hundred and thirty-six, has given notice of intention to practise, as well as by any one of those authorities.

2. Where the direction is given jointly by two or more of the said authorities—

- (a) the direction shall require the midwife to surrender her certificate to such one of those authorities as may be specified in the direction; and
- (b) the midwife shall be entitled, on surrendering her certificate to the authority so specified, to be paid by that authority such compensation as is provided by the said subsection; and
- (c) the authority by which the compensation is paid to the midwife as aforesaid shall be entitled to recover from any other authority which joined in giving the direction a sum equal to such proportion of the compensation so paid as may be fixed by agreement between the authorities which gave the direction or, in default of such agreement, by the Minister.